

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Hallie Gorman Campbell

Department 2

June 3, 2026

8:30 am

DA Case #

Date Filed

5 CVL66196 Capital One, N.A. vs. Debra A. Fox

06/07/2024

Capital One, N.A.

Attorney: Anthony DiPiero

Debra A. Fox

Claim of Exemption Hearing

Attorney for Plaintiff called to reserve on 4-29-26
Phone 408 414 0400

06/07/2024 Complaint

File Tracking

12/27/2024 High Density

This is a collection case involving a debt of roughly \$12,000. Before the Court this day is the debtor's claim of exemption. Debtor has declined to offer any amount to satisfy the debt, claiming instead that her monthly wages are insufficient to cover her needs.

The California Constitution mandates that the Legislature protect "a certain portion" of debtors' property from forced sale. See Cal. Const. Art. XX, §1.5. The broad purpose is to protect enough property from enforcement to enable judgment debtors to support themselves and their families, and to help shift the cost of social welfare for debtors from the community to judgment creditors. *Coastline JX Holdings LLC v. Bennett* (2022) 80 Cal.App.5th 985, 1004; *Kilker v. Stillman* (2015) 233 Cal.App.4th 320, 329. To this end, exemption laws are liberally construed in the debtor's favor. *Kono v. Meeker* (2011) 196 Cal.App.4th 81, 86; *Ford Motor Credit Co. v. Waters* (2008) 166 Cal.App.4th Supp. 1, 8.

First, there is a statutory cap on garnishment equal to 20% of a debtor's disposable earnings (which are those earnings remaining after deductions for *required* taxes, disability, and retirement benefits) or 40% of the disposable income north of minimum wage. CCP §§ 706.011, 706.050; see also 15 USC §1672-1673; in accord, *Sourcecorp, Inc. v. Shill* (2012) 206 Cal.App.4th 1054, 1058. Based on the financial statement, that number ranges between \$404 - \$900 each month. The statute requires the Court to select the bottom of the range (using \$16.90/hr).

Next, the court must consider any additional caps vis-à-vis a claim of exemption. Debtors ordinarily claim exemption under CCP §706.051, which protects "the portion of the judgment debtor's earnings which the judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family." There is no precise definition of what is necessary for the support of a judgment debtor or his or her family. Necessary normally includes housing costs, food, insurance, and automobile costs, but the determination of what is necessary for the support of the judgment debtor or his family has not been subject to a precise definition and differs with each debtor. This Court takes judicial notice of the Judgment in FL19326 in which debtor declined adult child support or spousal support, which would have assisted her in paying her debts and caring for the household. The debtor's claim of exemption does not include a summary or statement of necessities, but the financial statement here and in FL19326 differ.

Since creditor is unwilling to offer any payment plan, and has filed inconsistent sworn financial statements, this Court is left with little option but to conclude that debtor has the ability – but not the will – to pay this debt. The claim of discretionary exemption is denied.

Creditor shall be entitled to \$202 each pay period.